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Date: 2/11/19

CITY OF CHEYENNE
CONTRACT MODIFICATION

Contract Modification: #1
Project: Abatement Services for 2247 East 19th Street, Cheyenne, Wyoming
Project Number: Contract No. 6932
Contractor: Asbestos & Technical Services

The above-referenced is modified as set forth in the following, and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. **Description of Changes.**

The City of Cheyenne ("City") and Asbestos & Technical Services ("Consultant") entered into a professional services agreement dated December 10, 2018. That contract bears city contract number 6932 ("Agreement"). The Agreement contemplates completion of the scope of work identified therein by February 28, 2019. The parties agree additional time is needed to remove asbestos containing materials from the residential property located at 2247 East 19th Street, Cheyenne, Wyoming.

II. **New Contract Items.**

The new contract item identified here is additional time to complete the scope of work identified in the Agreement.

III. **Schedule.**

This contract modification extends the completion of service date from February 28, 2019 to December 31, 2019.

IV. **Summary.**

Original Contract Amount.....	\$42,100.00
Previous Modifications.....	\$ 0.00
Contract Amount Prior to this Modification.....	\$42,100.00
This Modification.....	\$ 0.00
New Contract Amount.....	\$42,100.00

V. Approvals.

City of Cheyenne

By:

Date

Marian J. Orr, Mayor

(SEAL)
Attest:

Kristina F. Jones, City Clerk

Asbestos & Technical Services

By:

Date

Print Name:

Title: _____

Attachments:

1. Exhibit A: Original contract including the original scope of work.

EXHIBIT A

City Contract No. 6932



Date: 11/14/18

City Contract # 6932

PROFESSIONAL SERVICES AGREEMENT for

Abatement Services

THIS AGREEMENT is made and entered into this 10th day of December, 2018, by and between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Asbestos & Technical Services, located at 10990 Red Sky Loop, Cheyenne, Wyoming 82009 ("Consultant").

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK**

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. **TIME OF PERFORMANCE**

The work included in this Scope of Work will be completed by February 28, 2019.

3. **CONSULTANT RESPONSIBILITY**

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances at the same time and in the same or similar locality. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not meeting such a standard.

4. **COMPLIANCE WITH LAWS**

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

5. **DRUG-FREE WORKPLACE**

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the

Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

6. **INDEMNIFICATION/HOLD HARMLESS**

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

7. **INSURANCE REQUIREMENTS**

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new

- certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
 - d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

- 8. **MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES** 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.
- 9. **COMPENSATION**
In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of Forty-Two Thousand One Hundred Dollars (\$42,100) as stated in Exhibit A.

10. **MONTHLY REPORT**

With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

11. **INDEPENDENT CONSULTANT**

The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.

12. **TAXES**

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by and in connection with its operations under this Agreement.

13. **DEFAULT**

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

14. **REMEDIES**

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the Agreement as continuing and require specific performance.

15. **TERM AND TERMINATION**

This Agreement shall be for a period of three months. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retain all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

21. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

22. ENTIRETY OF AGREEMENT

This Agreement consisting of six pages, and Exhibit A consisting of two pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

City of Cheyenne

(SEAL)

Attest:

Kylie Soden
~~Carol Soden, City Clerk~~
Kylie Soden, Deputy City Clerk

By: 
Marian J. Orr, Mayor

Date: _____

Consultant

By: See Attached

Print Name: _____

Date: _____

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

22. ENTIRETY OF AGREEMENT

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City of Cheyenne

(SEAL)

Attest:

Kylie Soden
~~Carolyn K. Orr, City Clerk~~
Kylie Soden, Deputy City Clerk

By: WJO

Marian J. Orr, Mayor

Date: _____

Consultant

By: David Blackwell

Print Name: David Blackwell

Date: 1/28/2019

EXHIBIT A

Asbestos & Technical Services
P.O. Box 2574
Cheyenne, WY 82003
(307) 214-0904

Abatement Services Proposal

To:	Steve Gaer	From:	Nate Challenger
Company:	City of Cheyenne	Date:	10/11/18
E-mail:	sgaer@cheyennecity.org	Pages:	2
Phone:	(307) 637-6498	Re:	2247 E. 19th Street, Cheyenne, WY Flooring Abatement

Based on site visit and information provided by the owner, Asbestos & Technical Services (ATS) has prepared the following proposal to remove asbestos containing materials from the residential property located at 2247 E. 19th Street, Cheyenne, WY. The identified asbestos materials will be removed as part of a demolition project.

Project Scope

The base scope of work includes removing the following:

- Asbestos textured drywall from walls and/or ceilings in the Family Room, Kitchen, Dining Room, Hall Bathroom, Hallway, Bedroom, Workout Room, Powder Bathroom, Back Entrance and Associated Closets of the main level/ lower level of the home (excludes drywall in staircase or basement level)
- Asbestos spray-applied texture and drywall from ceilings in the Family Room, Hallway, Bedroom, Dining Room and Workout Room areas of the main level/ lower level of the home
- Asbestos vinyl floor tile and mastic in the Living Room, Kitchen, Bedroom, Hallway, Laundry Room and Storage Room in the basement level of the home
- Asbestos vinyl floor tile and mastic in the Bonus Room that is accessible from the back yard and beneath the building addition/ first floor of the building
- Asbestos glazing by component removal of associated windows that are on the first floor and basement level of the building
- Asbestos cement siding ("transite") that is on all for exterior sides of the home

The asbestos materials will be removed within a series of containments or regulated work areas that will created using 6 ml. polyethylene sheeting. All containment structures will be kept under continuous negative air flow throughout the abatement process. All waste material will be disposed of at an EPA-approved facility.

Project Costs

The cost to complete the Base Scope detailed above is \$39,700.00 and includes the inspection, abatement labor, materials, equipment, tools, travel costs needed to perform the abatement scope and waste disposal at an EPA-approved site.

Alternate: During the mobilization for the Base Scope, ATS will remove the old furnace that is in the basement level of the building to account for suspect building materials that are present within this furnace box. The price to remove the furnace is \$2,400.00 and will be added to the price above.

Clarifications

ATS assumes that the owner will not provide adequate power and water needed to perform the abatement work listed above. ATS will provide a fuel-powered generator to perform the work scope. The furnace may need to run 24 hours a day until this project is complete.

Other asbestos material locations or quantities, types of asbestos-containing materials, or removal and remediation of other types of hazardous materials are "unknown" and excluded from this proposal. ATS will need to attach poly sheeting on walls in order to build an effective containment. While every effort will be made to minimize paint damage when taking down the containment, it is not unusual for small patches of paint damage to occur. ATS has not made provision for spot, touch-up painting, if necessary, in its Base Scope proposal.

Thank you for considering ATS for this project.

Approved and accepted by*:

Asbestos & Technical Services

Company

Signature

Nate Challenger

Nathanael L. Challenger
Estimator & Project Manager

Name

Date

